

Court No. - 39

Case :- WRIT - C No. - 4647 of 2021

Petitioner :- Smt. Bhagwati

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Siya Ram Verma, Akansha Verma, Deepak Kumar Verma

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondents no.1 to 3 and Shri Ajal Krishna, learned counsel appearing on behalf of respondent no.4.

The instant petition has been filed seeking following reliefs :

"(a) Issue a writ, order or direction in the nature of writ of certiorari for quashing the impugned recovery citation dated 04.12.2020 for a sum of rupees 4,71,262/- (annexure no.1 to the writ petition) issued by the respondent no.3, Tehsildar, Tehsil-Sikandra, District Kanpur Dehat, against the petitioner,

(b) Issue a writ, order or direction in the nature of mandamus commanding the respondent-authorities to accept the entire dues in easy installments from the petitioner."

Learned counsel for the petitioner submits that he is ready and willing to deposit the total amount of Rs.4,71,262/- in easy installments.

Shri Ajal Krishna, learned counsel for respondent no.4 submits that the petitioner's grievance for payment of dues in easy installments can be considered and decided under Clause 6.14 of the Electricity Supply Code, 2005, hence some reasonable time may be allowed by this Court.

Considering the aforesaid submissions, without going into the merits of the case, this writ petition is **disposed of** with a direction to the petitioner to move a representation ventilating all his grievances before respondent no. 4 within three weeks from today along with a copy of this order who shall consider and decide the same strictly in accordance with law preferably within a period of four weeks.

In case the petitioner deposits the amount as agreed between the parties, no coercive action shall be taken

against the petitioner. In case of default in payment, the petitioner shall not be entitled to the benefits of this order.

Order Date :- 10.2.2021

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